Lanco Amarkantak Power Limited vs Haryana Electricity Regulatory ... on 12 November, 2018

COURT-II
IN THE APPELLATE TRIBUNAL FOR ELECTRICITY
(APPELLATE JURISDICTION)

ORDER IN C.P. No. 02 of 2018 IN APPEAL NO. 117 OF 2015 &
IA NO. 1469 of 2018
ON THE FILE OF THE
APPELLATE TRIBUNAL FOR ELECTRICITY, NEW DELHI

Dated : 12th November, 2018

Present: Hon'ble Mr. Justice N.K. Patil, Judicial Member
Hon'ble Mr. S. D. Dubey, Technical Member

In the matter of:

Lanco Amarkantak Power Limited,
(A company incorporated and registered under the provisions
of the Companies Act, 1956),
having its registered office at Lanco House,
Plot No.4, Software Units Layout, HITEC City,
Madhapur, Hyderabad-500 081,
Telangana

Also at

Lanco House, Plot No.397, Phase III,
Udyog Vihar, Gurgaon-122 016,
Throuugh its Authorised Signatory ..... Petitioner

Versus

1. Secretary,
Haryana Electricity Regulatory Commission,
Bays 33-36, Sector-4, Panchkula-134112,
Haryana
India

2. Haryana Electricity Regulatory Commission,
Bays 33-36, Sector-4, Panchkula-134112,
Haryana, India
Through its Secretary ..... Respondent(s)

Versus

Counsel for the Appellant(s) : Mr. Deepak Khurana

Mr. Tejasv Anand

Counsel for the Respondent(s) : Mr. Nishant Ahlawat for R-1

The Petitioner has sought the following reliefs in C.P. No.02 of 2018 in Appeal No.117 of 2015:-

(a) Take cognizance of the acts of disobedience and non-compliance committed by the Respondents herein and take action against the Respondents and/or any other persons who are found guilty of non-compliance of the directions issued by this Hon'ble Tribunal in its Order/judgment dated 21.03.2018;

(b) Pass such other or further order/s as this Hon'ble Tribunal may deem fit in the facts and circumstances of the present case.

ORDER

PER HON'BLE MR. JUSTICE N.K. PATIL, JUDICIAL MEMBER

1. We have heard learned counsel appearing for the Petitioner.

2. The learned counsel, Mr. Deepak Khurana, appearing for the Petitioner submitted that, the prayer sought in the instant petition does not survive for consideration on the ground that the direction issued by this Tribunal is complied with. Therefore, he submitted that the instant petition filed by the Petitioner may be disposed of, as having become infructuous.

3. The submission made by the learned counsel appearing for the Petitioner, as stated supra, is placed on record.

4. In the light of the submission of the learned counsel appearing for the Petitioner, the instant petition filed by the Petitioner stands disposed of, as having become infructuous.

IA NO.1469 OF 2018

5. The Petition filed by the Appellant is dismissed as withdrawn and therefore the reliefs sought in IA No. 1469 of 2018 filed by the Petitioner does not survive for consideration and hence stands disposed of as the same having become infructuous.

6. Order accordingly.

(S.D. Dubey) (Justice N. K. Patil)
Technical Member Judicial Member
Pr/pk